

Court No. - 3

Case :- WRIT - C No. - 19698 of 2017

Petitioner :- Ashish Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shireesh Kumar Dwivedi

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Siddhartha Varma,J.

Put up as fresh on 16.5.2017 by which time Sri Shyam Singh Yadav, holding brief of Sri Chandan Agarwal, learned counsel appearing on behalf of the respondent shall seek instruction in the matter.

Order Date :- 9.5.2017

OP

Court No. - 3

Case :- WRIT - C No. - 19698 of 2017

Petitioner :- Ashish Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shirish Kumar Dwivedi

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard Sri Shirish Kumar Dwivedi, learned counsel for the petitioner and Sri Shyam Singh Yadav, holding brief of Sri Chandan Agarwal, learned counsel for respondent nos. 1 and 2.

On 09.05.2017, learned counsel for the respondent nos. 1 and 2 was granted time to seek instructions in the matter. He has produced before us the copy of the instructions which shows that provisional assessment notice dated 08.09.2014 was sent to the petitioner by ordinary post. It is contended on behalf of the petitioner that since he did not receive the copy of the provisional assessment notice, as such he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Learned counsel for the petitioner has invited our attention to the contents of the notice dated 08.09.2014 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in *Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB) from paras 56 to 64* has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.6,64,065/-. The notice also does not specify the date for

hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 08.09.2014 and the recovery citation dated 03.08.2016 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in *Ashok Kumar (supra)*.

Order Date :- 19.5.2017

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